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CASE #	CASE NAME	HEARING NAME
CVRI2104149	NORTHGATE GONZALEZ, LLC vs REALM REAL ESTATE, LLC	MOTION FOR LEAVE TO INTERVENE

Tentative Ruling:

Summary of Ruling: The Court denies the motion.

Factual / Procedural Context

This is a breach of contract and quiet title action filed September 14, 2021 by Plaintiffs Northgate Gonzalez, LLC, Wilson Holdings, L.P. and Los Altos XXVII, L.P. against Defendants Realm Real Estate, LLC¹, and Magnolia Partnership, LLC. On October 25, 2021 David Dieterle moved for leave to intervene as a Plaintiff Intervener, which the court granted on December 1, 2021.

On October 29, 2021, Defendants Magnolia Partnership, LLC filed a Cross-Complaint for breach of contract and enforcement of easement against Cross-Defendants Northgate Gonzales, LLC, Wilson Holdings, L.P., Altos XXVII, L.P., David Dieterly, Trustee of the David Dieterle Trust, and Hyrosen Properties, Inc. Thereafter, Cross-Complainants filed a First Amended Cross-Complaint, Second Amended Cross-Complaint then a Third Amended Cross-Complaint.

Cross-Defendant LMP Realty Advisors, LLC filed a Cross-Complaint, which they dismissed on November 5, 2024.

Plaintiffs moved for summary judgment on its Complaint and on June 2, 2023, the court granted Plaintiffs summary judgment. Defendant Magnolia appealed the summary judgment ruling. On April 10, 2025, the Court of Appeal affirmed the judgment.

On November 30, 2023, Cross-Complainant Magnolia Partnership, LLC dismissed their TACC on November 4, 2024.

Plaintiff Intervenor Dieterle dismissed his Complaint in Intervention on November 1, 2024.

Now Terracotta Two, LLC moves, pursuant to CCP section 387, for leave to intervene. The motion asserts that they are the current owner of the real property that is the subject of the amended judgment entered on July 19, 2023. Terracotta asserts that their interest is not adequately represented by any of the existing parties. Terracotta asserts mandatory intervention, but alternatively asserts that it has an interest in the matter in litigation, specifically the permanent injunction affecting the Property it owns, within the meaning of Code of Civil Procedure section 387(d)(2), warranting permissive intervention.

¹ On November 23, 2022, Plaintiffs dismissed the action against Defendant Realm Real Estate, LLC.

Terracotta was the Defendant Magnolia's lender and after the entry of judgment in this case they became the owner of the Magnolia parcel following a nonjudicial foreclosure sale. Terracotta seeks to intervene to seek a modification of the permanent injunction entered in this case against Magnolia regarding the construction of the Magnolia Flats Project (as part of the summary judgment order). Terracotta asserts that changes in the law enacted by AB1050 support a modification.

In opposition, Plaintiffs assert that the judgment and permanent injunction are final. Plaintiffs assert that Magnolia took title to the property aware of the litigation in this case and 14 months after the judgment and while Magnolia's appeal was pending. In addition, there is a pending action (CVRI2405860) filed by Magnolia against Terracotta asserting wrongful foreclosure and seeking to set aside the foreclosure. Further, whether Terracotta is bound by the terms of the permanent injunction is already being litigated in CVRI2602951 before Judge Choi in Department 5. The Verified Complaint pleads TerraCotta's reliance on AB 1050 and Plaintiffs' position that Section 714.6 neither reaches the recorded reciprocal easements nor displaces the Injunction. Therefore, Plaintiffs assert that the injunction can be enforced or modified in the Enforcement Action.

Terracotta did not file a reply memorandum, only a reply declaration.

Evidentiary Issues

Requests for Judicial Notice:

Plaintiffs filed the following requests for judicial notice:

1. Exhibit 1 a true and correct copy of the Complaint filed by Plaintiffs and LMP Realty Advisors, LLC against TerraCotta Two, LLC in the civil action entitled LMP Realty Advisors, LLC, et al. v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2602951;
2. Exhibit 2 a true and correct copy of the Demurrer to the Complaint filed by TerraCotta Two, LLC in the civil action entitled LMP Realty Advisors, LLC, et al. v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2602951;
3. Exhibit 3 a true and correct copy of the Court's ruling on the TerraCotta's Two, LLC's Demurrer to the Complaint in the civil action entitled LMP Realty Advisors, LLC, et al. v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2602951;
4. Exhibit 4 a true and correct copy of the First Amended Complaint filed by Magnolia Partnership, LLC against TerraCotta Two, LLC in the civil action entitled Magnolia Partnership LLC v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2405860;
5. Exhibit 5 a true and correct copy of the Notice of Recording of Pendency of

Action (Lis Pendens) filed in the civil action entitled Magnolia Partnership LLC v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2405860; and

6. Exhibit 6 an Order for Judicial Reference based on the parties' stipulation in the civil action entitled Magnolia Partnership LLC v. TerraCotta Two, LLC, Riverside Superior Court Case No. CVRI2405860.

The court grants all six requests.

Evidentiary Objections:

Plaintiffs filed evidentiary objections to portions of the Declaration of Tingting Zhang, all of which the court should overrule.

New Evidence Submitted with the Reply:

With its reply, Terracotta submitted the declaration of Attorney Andrew Lanphere, which the court strikes. Under general rule of motion practice, new evidence or arguments raised for the first time in reply papers are generally not allowed and are only allowed in exceptional cases. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) The court has discretion to accept new evidence in reply papers as long as opposing party is given the opportunity to respond. (*Alliant Ins. Services, Inc. v. Gaddy* (2008) 159 Cal.App.4th 1292, 1307-1308.) However, while new evidence is generally not permitted in a reply brief, there is a recognized exception for points that are strictly responsive to arguments made for the first time in the opposition. (*Golden Door Props., LLC v Superior Court* (2020) 53 CA5th 733, 774)

Analysis

Pursuant to CCP section 387, a nonparty can intervene in "an action or proceeding between other persons by doing any of the following: (1) Joining a plaintiff in claiming what is sought by the complaint. (2) Uniting with a defendant in resisting the claims of a plaintiff. (3) Demanding anything adverse to both a plaintiff and a defendant." (CCP §387(b).) Here, Terracotta does not set forth which of the three it is seeking. Clearly, Terracotta is not seeking to join as a plaintiff. As to uniting with defendant Magnolia, those claims have been fully litigated. Nor has Terracotta shown it seeks to demand something adverse to both Plaintiffs and Defendant Magnolia.

Terracotta asserts that they are entitled to mandatory intervention pursuant to CCP section 387(d)(1), which provides that "[t]he court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: ...(B) the person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (CCP

§387(d)(1)(B).) This section has no application as 1) there is no pending disposition that may impair or impede Terracotta's ability to protect its interest.

As to discretionary intervention, pursuant to CCP section 3879d)(2), "[t]he court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. Again, there is nothing left to litigate, so Terracotta does not have an interest in the matter of the litigation or the success of either party or have an interest against both. Further, "the court [only] has discretion to permit a nonparty to intervene where the following factors are met: 1) the proper procedures have been followed, 2) the nonparty has a direct and immediate interest in the action, 3) the intervention will not enlarge the issues in the litigation, and 4) the reasons for the intervention outweigh any opposition by the parties presently in the action. (*Siena Court Homeowners Assn. v. Green Valley Corp.* (2008) 164 Cal.App.4th 1416, 1428.) While Terracotta has followed the proper procedures none of the other factors are present.

This case has been fully litigated and the permanent injunction at issue has been affirmed by the Court of Appeal without a subsequent appeal having been filed. Further, as Terracotta seeks intervention to challenge the enforceability of the permanent injunction in light of the enactment of AB 1050 (effective January 1, 2026) there is already a pending lawsuit between Plaintiffs and Terracotta regarding that issue. For all of these reasons, the court denies the motion.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2301806	LANGSTON vs CITY OF RIVERSIDE	MOTION TO TAX COSTS

Tentative Ruling:

Summary of Ruling: The court taxes \$233,385.08 in total, reducing Defendants' requested costs from \$358,788.51 to \$125,403.43.

Factual / Procedural Context:

On 4/7/23, Plaintiffs Thomas Langston and Judy Langston filed this wrongful death action arising from a 6/15/15 vehicle collision involving their son, Decedent David Langston, and Defendant Victor Lee Schmitz, a police officer hired by Defendant City of Riverside. Plaintiffs filed the First Amended Complaint ("FAC") on 9/15/23. Plaintiffs alleged wrongful death claims in their individual capacities and survival claims as successors-in-interest. On 5/22/26, the jury returned a unanimous verdict in favor of Defendants. On 7/2/26, Defendants served an amended memorandum of costs seeking \$358,788.51.

Now, Plaintiffs move to strike or tax these costs. Plaintiffs argue that Defendants' separate CCP §998 offers of \$7,500 to each Plaintiff were invalid because each offer required an unattached and unspecified release of *all* claims, and a dismissal of the entire